

28. **23 & 24 Vict. c. 145.** — By 23 & 24 Vict. c. 145, as to mortgages *by deed* created since 28th August, 1860, and where the security does not speak to the contrary, any mortgagee, though his security contain no power of sale, may, when the principal sum has been in arrear for twelve months, or the interest for six months, or there has been any default by the mortgagor in insuring, proceed to a sale, after six months' notice, and sign a valid receipt for the purchase-money (*g*).

[**44 & 45 Vict. c. 41.** — But this has been repealed as to instruments executed after the 31st of December, 1881, and its place supplied as to such instruments by the Conveyancing and Law of Property Act, 1881, which gives to *mortgagees of property generally, whether real or [*432] personal, where the mortgage is by deed, and no contrary intention is expressed in the instrument, power to sell the mortgaged property when the mortgage money has become due; but the power is not to be exercised unless and until —

(1). Notice requiring payment of the mortgage money has been given, the default made in payment for three months; or

(2). Some interest has been in arrear for two months after becoming due; or

(3). There has been a breach on the part of the mortgagor of some provision contained in the mortgage deed or in the Act other than and besides a covenant for payment of the mortgage money or interest thereon (*a*).]

29. **Trustees must show a good title.** — As a trustee, like any ordinary vendor, is bound to make the purchaser a good title (*b*), it would be prudent before proceeding to the execution of the trust, to take the opinion of counsel whether a good title can be deduced. Should the contract for sale be unconditional and the title prove bad, the purchaser in a

T. N. S. 389; reversing S. C. 46 L. T. N. S. 766.]

(*g*) 23 & 24 Vict. c. 145, ss. 11-16; and s. 34.

[(*a*) 44 & 45 Vict. c. 41, ss. 19, 20, 71.]

(*b*) *White v. Foljambe*, 11 Ves. 343, 345, *per* Lord Eldon; and see *M'Donald v. Hanson*, 12 Ves. 277.